

Agreement for Contributor to a Book

Dear

We, Exapt Press of 47 Park Avenue North, London, N8 7RS, United Kingdom ('the Publishers') are happy to learn that you have agreed to contribute to our publication: *Personal Knowledge Graphs* ('the Work')

Edited by: Ivo Velitchkov and George Anadiotis ('the General Editor').

Your contribution will be published on the following terms:

1. You will contribute your chapter on ('the Contribution') which will consist of not more than 10,000 words and not less than 5,000 words on as an email attachment as a markdown file retaining a copy for your own files. The Contribution will be delivered to the General Editor no later than 1 September 2022 together with any illustrations, photographs, drawings, charts or graphs in a form suitable for reproduction as agreed with the Publishers – refer and comply with the chapter submission guidelines.

Should you fail to deliver the Contribution by this date or by such other date as may have been agreed in writing by the Publishers, or should you fail to deliver the Contribution in the form specified, then the Publishers shall be at liberty to decline to publish the Contribution, in which case the sum specified in Clause 8 hereof shall not be payable to you.

2. You as the Author of the Contribution warrant to the Publishers that the Contribution is original to yourself except for material in the public domain and such excerpts of other works as may be included with written permission of the copyright owner, that it has not hitherto been published in any form, that it will in no way whatever give rise to violation of any existing copyright or a breach of any existing agreement, including any contract of employment, or infringe any duty of confidence or duty to respect privacy or any other right (including any moral right) of any person. You further warrant that the Contribution contains nothing obscene, libellous, unlawful or otherwise objectionable, that all statements therein purporting to be facts are true and that any recipe, formula or instruction contained in the Contribution will not, if followed accurately, cause injury or illness or damage to the user. You undertake to indemnify the Publishers against any claims, any loss, damage or costs, including any legal costs properly incurred, occasioned to the Publishers in consequence of any breach of this warranty or arising out of any claim alleging that your Contribution constitutes a breach of this warranty. The warranties and indemnity shall survive the termination of this agreement.

You accept responsibility for obtaining permission for publication in the Contribution at your expense of any textual and/or illustrative material in which copyright vests in any other person or party and will deliver to the Publishers for safe keeping any documents relating to the granting of such permissions. Permission will be for the right to use the said material in the Work published by the Publishers in all editions, forms and media and in any editions of the Work licensed by the Publishers to third parties in any language or form throughout the world.

3. For the consideration mentioned in Clause 8, you, by way of assignment of present or future copyright, hereby assign to the Publishers the entire copyright and all other rights of a like nature in and to the Contribution throughout the world (including for the

avoidance of doubt all Digital Rights) for the full legal term of copyright and all renewals, revivals and extensions of such period, including, where relevant, by way of present assignment of future copyright. The Publishers shall have the exclusive right during such period to publish, and to license for publication, the Contribution in whole and in part in all editions, forms and media in the English language and in any translations without limitation.

4. You may re-publish the Contribution in whole or in part at no charge with the Publishers' prior written permission, such permission not to be unreasonably withheld, provided that proper acknowledgment is given to the Publishers in such re-publication.
5. The Contribution will be offered by you and subject to the decision of the General Editor (see below) and the terms of Clause 1 (above) will be accepted for publication in the first edition of the Work only and the Publishers shall have the right to include the Contribution in any subsequent revised edition or editions of the Work on the terms set out below.

The General Editor shall have the right to make any revision to the Contribution which they may deem desirable in the interests of uniformity and style of the Work. The General Editor shall have the final decision on the inclusion or omission of the Contribution in or from the first and any subsequent editions of the Work.

You will, if so required by the General Editor, revise the Contribution for any new edition of the Work and you agree that such revised Contribution shall be subject to the terms and conditions herein generally stated except that the payment for such revised Contribution shall be mutually agreed between yourself and the Publishers.

6. To reduce the length and expense of production time, the Publishers may agree with the General Editor to dispense with proof corrections by you in which event the Publishers and their printers will ensure the correction of any typographical errors, and you will see the artwork of all redrawn illustrations before their reproduction in the Work. Accordingly the Publishers request your co-operation in making all reasonable efforts to ensure that all required amendments and corrections are incorporated in the final completed text before it is submitted in the required form to the Publishers.

Should proofs of the Contribution (and finished artwork) be provided to you, you undertake to read, check and correct them and return them to the Publishers within 14 days of their receipt, failing which the Publishers may consider the proofs and artwork passed for press by you.

7. The Publishers will absorb the cost of your corrections up to but not exceeding an amount equal to 10 per cent of the cost of origination of the Contribution but any cost incurred in excess of that amount will be charged against payment to you referred to in Clause 8.
- 8.1 As full consideration for the copyright and all other rights in the Contribution assigned to the Publishers in Clause 3 and subject to the terms of Clause 5 as regards acceptance of the Contribution and any revised Contribution the Publishers will pay you on publication of the Work the sum of zero and in the event that there is more than one author of the Contribution payment will be divided equally between each of you unless the Publishers are authorised to the contrary in writing signed by each of you.
- 8.2 The Publishers will pay you 50 per cent of the net receipts from individual sales of your chapter Contribution when it is sold alone or together with other chapter Contributions, but not as part of sales of the whole Work.
- 9.1 The Publishers and the Author each have the right to authorise collective management organisations of their choice to manage certain of their rights.
- 9.2. Reprographic and other collectively managed rights in the Work (the 'Collective

Rights') have been licensed on a non-exclusive basis by the Publishers and the Author to the Publishers Licensing Society Limited (PLS) and the Authors Licensing and Collecting Society Limited (ALCS) respectively.

- 9.3.** The Copyright Licensing Agency Limited (CLA) has been mandated as the non-exclusive agent of both PLS and ALCS to administer the Collective Rights under CLA's reprographic and other collective licensing schemes ('Collective Licences').
- 9.4.** The Publishers and the Author shall each receive their share of revenue from use of the Work under Collective Licences from and in accordance with the distribution terms of PLS and ALCS respectively.
- 9.5.** The Publishers and the Author shall co-operate as necessary in the event of any change to the licensing arrangements set out in this Clause.
- 10.** The Publishers shall include your name with due prominence on the title page of the Contribution in any edition of the Work or elsewhere as determined by the Publishers as the author (or co-author as the case may be) of the Contribution.
- 11.** You hereby assert to the Publishers and to our licensees your moral right to be identified in the Work as the Author (or co-author as the case may be) of your Contribution, in accordance with the Copyright, Designs and Patents Act 1988.
- 12.** All sums payable to you under this letter are exclusive of UK Value Added Tax which shall, where applicable, be paid in addition at the rate in force at the time of payment, provided you have supplied the Publishers with a current and valid UK VAT registration number.
- 13.** The Publishers may deduct from any sum due to you under this letter of agreement any sum that we are or may be under an obligation to deduct or withhold in respect of any tax, duty or other similar levy.
- 14.** You will receive one free hardcopy and one markdown copy of the Work on publication. In addition, you are entitled to purchase further copies directly from the Publishers at normal trade discount off the UK recommended retail price. You are also entitled to purchase from the Publishers at a discount of 25 per cent other publications published by us.
- 15.** Any dispute or difference of any kind whatsoever which arises between you and the Publishers in relation to any matter in connection with this letter of agreement shall be referred to the arbitration of two persons (one to be named by each party) or their umpire in accordance with the provisions of the Arbitration Act 1996 or any amending or substituted statute for the time being in force.
- 16.** This letter of agreement shall be governed by and construed in accordance with the laws of England whose courts shall have exclusive jurisdiction.
- 17.** Also enclosed is a contributor card for your completion to be returned to the General Editor together with the material for your Contribution. It is most important that this document is completed as fully as possible. If your Contribution is being co-authored please photocopy the card, as appropriate, for completion by your co-author/authors.

Would you please sign and return to us, the Publishers, the enclosed duplicate copy of this letter to confirm your agreement to the terms of this letter. Where more than one author is involved, please all sign and return the duplicate copy.

I/We confirm my/our agreement to the above terms.

Yours sincerely

Signed

Date:

(for the Publishers)